

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 3 , 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00519

HANSEN v. PIZZUTI

**PLAINTIFF KATHY HANSEN’S DEMURRER AND MOTION TO STRIKE
CROSS-COMPLAINT BY DEFENDANT CARMELA PIZUTTI**

The demurrer is overruled. Plaintiff’s demurrer is procedurally deficient in that it fails to comply with Code of Civil Procedure sections 430.41 and 430.60 by failing to identify the grounds for demurrer in the notice and failing to include a declaration regarding meet and confer. Substantively, the demurrer is overruled since defendant’s cross-complaint sets forth sufficient facts supporting her claims for financial elder abuse, breach of contract, and intentional infliction of emotional distress. (Cross-complaint at ¶¶ 5-20, 31-48.)

The motion to strike is denied since it is also fatally procedurally flawed. The motion fails to list the specific portions of the cross-complaint which plaintiff seeks to strike and fails to include a declaration as to counsel’s obligation to meet and confer. (Cal. Rules of Court, rule 3.1322(a); Code Civ. Proc., § 435.5.)

Defendant’s request for judicial notice is denied since the Court need not take judicial notice of its own file.

No. 26CV01602

PRICE v. CADDIE SERVICES, LLC, et al.

DEFENDANT CADDIE SERVICES, LLC’S MOTION TO CHANGE VENUE

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The unopposed motion is granted. This action is ordered transferred to Monterey County Superior Court. The hearing on the pending Petition to Stay Arbitration, and case management conference set for September 11, 2026, are vacated. The Court will set a future date for monitoring the transfer.

Petitioner William Price concedes that Monterey County is the appropriate forum for this dispute. He seeks an order from this Court expressly preserving the status quo and ordering the pending AAA arbitration remain stayed during the transfer process and until the Monterey County Superior Court can address the pending stay issues. This Court will not make any order except for transfer; petitioner is to take up any substantive arguments or motions with the new forum.

No. 25CV03306

SCHWARTZ v. CHESTNUT IDENTITY APPAREL, INC., et al.

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO FORM
INTERROGATORIES (GENERAL), FORM INTERROGATORIES
(EMPLOYMENT), REQUEST FOR PRODUCTION, AND FOR MONETARY
SANCTIONS

The unopposed motion is granted. Defendant Chestnut Identity Apparel, Inc. shall serve verified code-compliant responses without objections to form interrogatories (general – set one), form interrogatories (employment – set one), and request for production of documents (set one) no later than October 2, 2026. Sanctions are imposed against defendant Chestnut Identity Apparel, Inc. in the amount of \$1,300.00 (two hours at \$650.00/hour), payable no later than October 2, 2026. (Code Civ. Proc., § 2023.030.)

Plaintiff Michael Schwartz demonstrated he served the discovery at issue on February 2, 2026. Defendant has not provided any responses to the interrogatories but did provide unverified responses to the document production on March 23, 2026. (Grimberg Declaration, ¶¶ 3-9.)